



File No.: EXP202310708

## SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On June 10, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in sanctioning procedure number PS/00439/2021, followed against INMARAN ASESORES S.L. (hereinafter, the respondent). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER INMARÁN ASESORES, S.L., with NIF B85508232, to, in accordance with Article 58.2.d) of the GDPR, proceed, within one month from the date this resolution becomes enforceable, to adopt all measures that are essential to ensure that it informs, in the terms provided in Article 13 of the GDPR, the data subjects from whom personal data is collected, at the time of collection.”

SECOND: The electronic notification of the resolution of the sanctioning procedure to the respondent was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP, hereinafter) as stated in the certificate included in the file.

THIRD: After the period indicated in the resolution had elapsed without any written communication received by this Agency regarding the measures implemented by the respondent, they were again required to provide evidence to this Agency within ten working days that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

Exceptionally, this requirement was sent by postal mail along with a copy of said Resolution, reminding them of their obligation to communicate electronically as provided in the LPACAP. The requirement was collected by the responsible party on July 18, 2022, as stated in the certificate from Correos included in the file.

FOURTH: After the period indicated in the previous fact had elapsed without any written communication received by this Agency regarding the implemented measures, a new period of ten working days was granted to provide evidence to this Agency that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution. This requirement was collected by the responsible party on October 6, 2022, as stated in the certificate from Correos included in the file.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

2/8

FIFTH: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

SIXTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal is possible due to the expiration of the established deadlines for this purpose. Likewise, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or of a request for precautionary suspension of the resolution.

SEVENTH: On November 30, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, under file number EXP202212017, for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the deadline granted for this purpose elapsed without the

respondent submitting any allegations, in accordance with the provisions of Article 64.2.f) of the LPACAP, the initiation agreement was considered a proposal for resolution.

NINTH: The resolution of the sanctioning procedure EXP202212017 was notified in accordance with the rules established in the LPACAP via electronic notification on February 10, 2023. This resolution reiterated the order to prove to this agency the adoption of all measures ordered in the resolution of the procedure PS/00439/2021, for which a new deadline was granted.

TENTH: After the specified deadline elapsed without this Agency receiving any written communication regarding the measures implemented by the respondent, they were again required on two occasions to prove to this Agency that they had adopted the appropriate corrective measures within ten working days, in accordance with what was agreed in the aforementioned resolution. The requests were received by the responsible party on April 28, 2023, and July 6, 2023, as evidenced by the acknowledgments of receipt in the file.

ELEVENTH: Against the aforementioned resolution, which imposes a fine of €1,000 on the respondent for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, and orders them to prove to this agency the adoption of all measures ordered in the resolution of the sanctioning procedure PS/00439/2021, no ordinary administrative appeal is possible due to the expiration of the established deadlines for this purpose. Likewise, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or of a request for precautionary suspension of the resolution.

TWELFTH: Regarding the ordered measures, the respondent continues to not send any response to this Agency that proves their adoption.

THIRTEENTH: On September 15, 2023, the Director of the Spanish Agency for Data Protection decided to initiate the present sanctioning procedure.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

3/8

to the complained party, for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR.

FOURTEENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, taking into account that the complained party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

FIFTEENTH: According to the report collected from the AXESOR tool, the entity INMARAN ASESORES S.L. is an SME established in 2008, with a turnover of 114,150 euros in 2014.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

#### PROVEN FACTS

FIRST: The resolution of sanctioning procedure number PS/00439/2021 and the requirements for compliance with the measures imposed therein, indicated in the first to fourth backgrounds, were notified in accordance with the provisions of the LPACAP.

SECOND: The complained party has not sent any response to this Agency that proves compliance with the imposed measures.

THIRD: The resolution of the sanctioning procedure with file number EXP202212017 was

electronically notified in accordance with the provisions of Article 43 of the LPACAP on February 10, 2023. This resolution reiterated the order to prove before this body the adoption of all the measures ordered in the resolution of procedure PS/00439/2021.

FOURTH: The notification of the initiation agreement of this sanctioning procedure was received by the complained party on September 21, 2023.

FIFTH: The complained party has not submitted allegations to the initiation agreement of this sanctioning procedure within the specified period for doing so.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

4/8

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Obligation breached

In accordance with the evidence available, it is considered that the complained party has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on it.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the complained party, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period;"

III

### Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

5/8

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

#### IV

##### Permanent Nature of the Infringement

Regarding the sanctioning procedure referred to in facts seven to eleven, which resolves by sanctioning the same infringement that is the subject of the present procedure, the following should be noted.

The party being claimed has persisted in its unlawful conduct, disregarding the order to demonstrate to this agency the adoption of all measures ordered in the resolution of procedure PS/00439/2021.

The infringing type includes the obligation to comply with the resolutions of this Agency, for which a deadline is granted, and once this is exceeded, the infringement is committed; however, such non-compliance and the consequent obligation remain over time until compliance occurs, as it is a permanent infringement.

In this regard, the Supreme Court, Administrative Litigation Chamber, Section Three, has ruled in judgment 978/2020 of 09/07/2020, Case No. 4700/2019, which collects the jurisprudence of this Chamber on the so-called "permanent infringements":

- In the STS of January 28, 2018 (case no. 2697/2016), it is stated that "the permanent infringement does not require a concurrence of unlawful acts but a single action of a lasting nature, whose unlawful content extends over time, as long as the active subject does not decide to cease in the execution of their conduct."

- In the STS of November 4, 2013 (cassation case no. 251/2011), it justifies that "if the persistence in non-compliance could not be sanctioned, it would foster impunity since compliance with the obligation would depend on the weighing between the cost of compliance and the amount of the fine; and once the sanction is imposed, compliance with the obligation would only depend on the will of the infringer without the possibility of being sanctioned for it."

Finally, it is noted that both the resolution imposing the originally non-complied measures in the sanctioning procedure PS/00439/2021 and the one sanctioning this infringement in EXP202212017 are firm and enforceable, thus fulfilling the provisions of Article 63.3 of the LPACAP: "New sanctioning procedures may not be initiated for facts or conduct classified as infringements in which the infringer persists continuously, as long as a first sanctioning resolution has not been issued, with executive character."

#### V

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

6/8

##### Imputed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating factors apply, and the following facts have been considered as aggravating:

- The continued nature of the infringement, in accordance with the provisions of Article 76.2.a) of the LOPDGDD in relation to Article 83.2.k). The party being claimed has persisted in its unlawful conduct, disregarding the order to demonstrate the adoption of the ordered measures, despite the time elapsed since the resolution of procedure PS/00439/2021, being expressly required for this on several occasions and having the sanctioning procedure EXP202212017 resolved against the entity for the same reason.

In light of the facts presented, it is considered appropriate to impose a sanction on the party being claimed for the violation of Article 58.2 of the GDPR classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €2,000.00 (TWO THOUSAND euros).

## Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which could motivate such conduct to open a further sanctioning administrative procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on INMARAN ASESORES S.L., with NIF B85508232, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of €2,000.00 (TWO THOUSAND euros).

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

7/8

SECOND: ORDER INMARAN ASESORES S.L., with NIF B85508232, to, pursuant to Article 58.2.d) of the GDPR, within 10 business days, provide evidence of having adopted the measures imposed in the resolution of the sanctioning procedure number PS/00439/2021.

THIRD: NOTIFY this resolution to INMARAN ASESORES S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-250923

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](https://sedeagpd.gob.es)